

25STCV08648 25STCV08648

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-14

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25STCV08648

Ruvalcaba v. Nissan North America, Inc. et al.

Friday, August

14, 2026

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 (7685)

I.

BACKGROUND

This

action arises from alleged violations of the Song Beverly Consumer Warranty Act in connection with a warranty contract issued by Defendant manufacturer.

Plaintiff

argues Defendant failed to disclose initial documents as required by statute. The 60-day deadline expired on October 31, 2025. Plaintiff asks for an order compelling Defendant's production of documents and issuing mandatory sanctions of \$2,500 against Defendant, Nissan North America, Inc.

Plaintiff

served the motion on Defendant, who failed to file an opposition.

II.

DISCUSSION

The

statute at issue requires both parties to disclose documents within 60 days after the answer or responsive pleading. (Code Civ. Proc., § 871.26(b); (h)(1). Defendant did not comply. (Shahian decl., ¶ 5.)

The

court “shall impose” sanctions of \$2,500 against the Defendant’s attorney to be paid within 15 business days for failure to comply with the document production requirements unless good cause is shown. (Code Civ. Proc., § 871.26 (j)(1).)

III.

CONCLUSION

Defendant

did not file an opposition showing good cause. Accordingly, the motion is GRANTED. Defendant is ordered to comply with the requirement to serve initial disclosures within 15 days. Defendant’s counsel, Sweeney APC, is ordered to pay sanctions of \$2,500 to Plaintiff within 15 days.